

25PSCV03215 25PSCV03215

County: los-angeles

Division: Civil Law and Motion

Department: G

Hearing date: 2026-09-03

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=EA%20%2CG%2C09%2F03%2F2026

Source SHA-256: 67c1f3b39846067c46081a27f8f94b3ca766c7dcf583d5b9261e0f4702d171a0

Case Number: 25PSCV03215 Hearing Date: September 3, 2026 Dept: G

Defendants

City of Alhambra, Alhambra Police Department, and Garrett Kennedy's Motion for Judgment on the Pleadings

Respondent:

Plaintiff Dann L. Duncan

Plaintiff

Dann L. Duncan's Motion for Sanctions

Respondent:

Defendants City of Alhambra, Alhambra Police Department, and Garrett Kennedy

TENTATIVE

RULING

Defendants

City of Alhambra, Alhambra Police Department, and Garrett Kennedy's Motion for Judgment on the Pleadings is GRANTED WITH TWENTY (20) DAYS LEAVE TO AMEND.

Plaintiff

Dann L. Duncan's Motion for Sanctions is deemed MOOT.

BACKGROUND

This

is a contractual fraud action. On

September 30, 1986, plaintiff Dann L. Duncan (Duncan) allegedly submitted a

signed CalPERS Application for Industrial Disability Retirement (the application) to defendant City of Alhambra (the City). On November 15, 2024, the City allegedly sent Duncan a copy of the application upon his request, and Duncan discovered alleged forgeries in the application, including an unauthorized signature and an erroneous date for Duncan's final day of work. Between December 30, 2024 and January 9, 2025, Duncan allegedly sent six messages to defendant Garrett Kennedy (Kennedy), the chief of defendant Alhambra Police Department (the Police Department), to discuss the renewal of Duncan's Honorably Retired APD ID Card (ID card) with Concealed Carry Weapons Permit (CCW permit) and the alleged forgeries in the application, but Kennedy allegedly failed to respond. On January 13, 2025, Duncan allegedly addressed the Alhambra City Council (the City Council) and Duncan at a scheduled public meeting to request the renewal of his ID card with CCW permit and a fraud disclosure on the application.

To date, the City, the Police Department, and Kennedy (collectively, Defendants) have allegedly failed to acquiesce to Duncan's requests.

On

September 5, 2025, Duncan filed the Complaint, alleging causes of action for (1) breach of contract, (2) fraud, (3) promissory fraud, (4) intentional misrepresentation, (5) breach of the implied covenant of good faith and fair dealing, (6) breach of the implied duty to perform with reasonable care, (7) failure to perform a mandatory duty, (8) disparate treatment, and (9) conspiracy.

On

July 1, 2026, Defendants filed the motion for judgment on the pleadings, which is unopposed. (Duncan filed an opposition to the request for judicial notice in support of the motion but did not file an opposition to the motion itself.)

On

July 13, 2026, Duncan filed the motion for sanctions. On August 20, 2026, Defendants filed the reply, and on August 25, 2026, Duncan filed the reply (which is labeled as an opposition.)

The

motions are set for hearing on September 3, 2026.

REQUESTS

FOR JUDICIAL NOTICE

The

City requests the court to take judicial notice of court records, a hearing transcript from a proceeding before a public entity, and local laws. The court may take judicial notice of regulations and legislative enactments issued by any public entity in the United States, the records of any California court, and facts and propositions that are not reasonably subject to dispute. (Evid. Code, § 452, subds. (b), (d)(1), (h).)

Thus,
the court takes judicial notice of the requested records.

MOTION FOR JUDGMENT ON THE PLEADINGS

Defendants

move for judgment on the pleadings to each of Duncan's causes of action. For the following reasons, the motion for judgment on the pleadings is GRANTED WITH LEAVE TO AMEND.

Legal
Standard

A

defendant may move for judgment on the pleadings when the “complaint does not state facts sufficient to constitute a cause of action against that defendant.”² (Code Civ. Proc., § 438, subd. (c)(1)(B)(ii).)³ “A motion for judgment on the pleadings is akin to a general demurrer; it tests the sufficiency of the complaint to state a cause of action. The court must assume the truth of all factual allegations in the complaint, along with matters subject to judicial notice.” (Wise v. Pacific Gas & Electric Co. (2005) 132 Cal.App.4th 725, 738, internal citation omitted.)

Discussion

Defendants

argue that Duncan failed to comply with the requirements of the Government Claims Act and failed to allege that he complied with the Government Claims Act. The court agrees.

An

injured party must present a claim for damages to a government entity before

filing any lawsuit for damages against that entity, and the injured party may only bring suit against the entity after the claim is rejected. (See Gov. Code, §§ 905, 910, 945.4.) Any suit brought against a public entity where written notice is provided must commence within six (6) months of delivery of the rejection of the government claim. (See Gov. Code, § 945.6.) Furthermore, claims for personal injury must be presented not later than six (6) months after the accrual of the cause of action. (See *Willis v. City of Carlsbad* (2020) 48 Cal.App.5th 1104, 1118.)

Timely claim presentation is not merely a procedural requirement but is a condition precedent to the claimant's ability to maintain an action against the public entity. (See *Cal. Restaurant Management Systems v. City of San Diego* (2011) 195 Cal.App.4th 1581, 1591.) The timely filing of a written government claim is an essential element that a plaintiff is required to prove to prevail on their cause of action. (See *Willis*, *supra*, at 1119; see also *V.C. v. Los Angeles Unified School Dist.* (2006) 139 Cal.App.4th 499, 509.) A complaint that fails to allege facts showing a timely presentation of a claim, or that such presentation was excused, is subject to a general demurrer for not stating facts sufficient to constitute a cause of action. (See *Willis*, *supra*, at 1119.)

Here,

the Complaint does not allege that Duncan filed a government claim before he initiated this action or that Duncan is otherwise excused from filing a government claim before filing suit. (See generally *Compl.*) Thus, the court finds the Complaint fails to state sufficient facts to support any claims against public entities.

Therefore,

the motion for judgment on the pleading is GRANTED WITH TWENTY (20) DAYS LEAVE TO AMEND. Since the court grants the motion based on compliance with the Government Claims Act, the parties' arguments as to the statute of limitations, issue preclusion, and the failure to allege sufficient facts are HELD IN ABEYANCE.

MOTION
FOR SANCTIONS

Since

the court grants the motion for judgment on the pleadings with leave to amend,
the motion for sanctions is deemed MOOT.

CONCLUSION

Based

on the above analysis, the motion for judgment on the pleadings is GRANTED
WITH TWENTY (20) LEAVE TO AMEND.

The

motion for sanctions is deemed MOOT.